

Federal Maritime Commission

MARINE TRANSPORT LOGISTICS, INC.

Complainant

v.

CMA-CGM (AMERICA), LLC

Respondent

Docket No. 18-07

JOINT STATUS REPORT, JOINT
MOTION FOR AN ADDITIONAL
FOURTEEN DAY STAY, &
PROPOSED DISCOVERY PLAN

Complainant, Marine Transport Logistics, Inc. ("MTL") and Respondent, CMA CGM (America) LLC ("CMA"), after conferring pursuant to 46 CFR 502.71(a), submit this Joint Status Report and respectfully request that Your Honor grant an additional fourteen (14) calendar day stay of the above-captioned matter to allow finalizing all the terms of the proposed settlement.

To ensure the issuance of the initial decision by September 6, 2019, the following joint discovery schedule is proposed irrespective of whether or not these proceedings are granted an additional stay.

1. Initial disclosures have been exchanged.
2. Initial discovery requests and notices of depositions will be served by March 15, 2019.
3. Responses to discovery requests will be served by April 15, 2019.
4. Depositions of all parties will be completed on or before May 30, 2019.

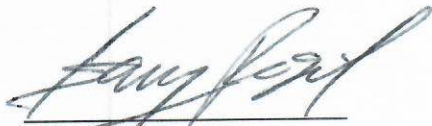
5. All affirmative expert reports will be exchanged by April 30, 2019 and any depositions of such experts will be completed within thirty (30) days of exchanging such.

6. All expert discovery will be completed by June 28, 2019.

7. All non-expert fact discovery to be completed by June 15, 2019

8. Dispositive motion, if any, will be filed by July 15, 2019.

9. Proposed Trial date: August 15, 2019.



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February 15, 2019

FEDERAL MARITIME COMMISSION

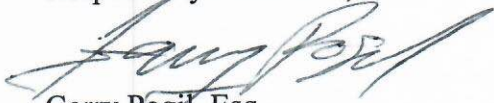
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Certification

The electronic copy of the within Joint Status Report (dated February 15, 2019) is a true and correct copy of the paper original. Furthermore, the paper signed original and five copies are being simultaneously filed with the Secretary of the Commission via First Class United States Postal Service.

February 15, 2019

Respectfully Submitted,



Garry Pogil, Esq

FEDERAL MARITIME COMMISSION

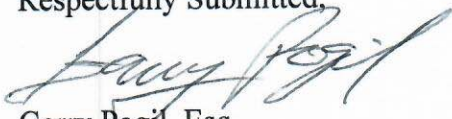
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Certification of Service

I, Garry Pogil, an attorney duly admitted to practice in the State of New York and New Jersey, affirm, that on February 15, 2019, I served, via First Class United States Postal Service and electronic mail the true copies of the within Joint Status report (dated February 15, 2019) on the following: Draughn Arbona, Esq, 5701 Lake Wright Drive, Norfolk, VA 23502: email: usa.darbona@usa.cma-cgm.com

February 15, 2019

Respectfully Submitted,



Garry Pogil, Esq